California Regional Water Quality Control Board
Central Valley Region
1885 E Street
Fresno, CA 93706

April 15, 2024

Dear CRWQCB,

This folder contains the 2023 Annual Report for;

J & Y Jimenez Dairy located at 11159 Peach Ave. in Livingston, California.

This document has been prepared by Dellavalle Laboratory, Inc. in accordance with WDR General Order R5-2007-0035. This report was compiled using data provided by the owners and operators of the dairy. Please find the following documents included;

- The Annual Report
- Manure Tracking Manifest
- Corrective Actions Documents
- Well Monitoring Analysis

Every effort has been made to maintain clear and accurate records. All records are held on-site and at Dellavalle Laboratory, Inc. in both electronic and hard copy form. These records will be kept for five years. Copies of every item in this folder have been made and are kept by the dairyman and Dellavalle Laboratory.

DELLAVALLE™
LABORATORY INC

Annual Report

1910 W. McKinley, Suite 110 Fresno CA 93728-1298 (559) 233-6129

Annual Report - General Order No. R5-2007-0035
Reporting period 01/01/2023 to 12/31/2023.

DAIRY FACILITY INFORMATION

A. NAME OF DAIRY OR BUSINESS OPERATING THE DAIRY: J & Y Jimenez Dairy

Physical address of dairy:

Number and Street	City	County	Zip Code
11159 Peach AVE	Livingston	Merced	95334

Street and nearest cross street (if no address):

Date facility was originally placed in operation: 01/01/1950

Regional Water Quality Control Board Basin Plan designation: San Joaquin River Basin

County Assessor Parcel Number(s) for dairy facility:

0143-0190-0007-0000

B. OPERATORS

Jimenez, Jose

Operator name: Jimenez, Jose

Telephone no.: (209) 596-8378 (Landline) (Cellular)

Mailing Address Number and Street	City	State	Zip Code
11159 Peach AVE	Livingston	CA	95334

This operator is responsible for paying permit fees.

C. OWNERS

Bhupinder, Sahota

Legal owner name: Bhupinder, Sahota

Telephone no.: (209) 394-7986 (Landline) (Cellular)

Mailing Address Number and Street	City	State	Zip Code
8499 Monte Cristo AVE	Livingston	CA	95334

AVAILABLE NUTRIENTS

A. HERD INFORMATION

	Milk Cows	Dry Cows	Bred Heifers (15-24 mo.)	Heifers (7-14 mo. to breeding)	Calves (4-6 mo.)	Calves (0-3 mo.)
Number open confinement	640	55	0	50	0	0
Number under roof	0	0	0	0	0	0
Maximum number	640	55	0	50	0	0
Average number	640	55	0	50	0	0
Avg live weight (lbs)	1,650	1,900	0	1,100		

Predominant milk cow breed: Holstein

Average milk production: 80 *pounds per cow per day*

B. MANURE GENERATED

Total manure excreted by the herd: 18,614.71 *tons per reporting period*

Total nitrogen from manure: 239,246.31 *lbs per reporting period*

After ammonia losses (30% loss applied): 167,472.42 *lbs per reporting period*

Total phosphorus from manure: 40,271.49 *lbs per reporting period*

Total potassium from manure: 126,770.71 *lbs per reporting period*

Total salt from manure: 313,991.25 *lbs per reporting period*

C. PROCESS WASTEWATER GENERATED

Process wastewater generated: 5,737,500 *gallons*

Total nitrogen generated: 13,020.46 *lbs*

Total phosphorus generated: 4,014.51 *lbs*

Total potassium generated: 88,774.86 *lbs*

Total salt generated: 310,080.01 *lbs*

	5,737,500	*gallons applied*
+	0	*gallons exported*
-	0	*gallons imported*
=	5,737,500	*gallons generated*

D. FRESH WATER SOURCES

Source Description	Type
Barn Domestic Well	Ground water
District Water	Surface water
House Domestic Well	Ground water

E. SUBSURFACE (TILE) DRAINAGE SOURCES

No subsurface (tile) drainage sources entered.

F. NUTRIENT IMPORTS

No dry manure nutrient imports entered.

No process wastewater nutrient imports entered.

No commercial or other nutrient imports entered.

G. NUTRIENT EXPORTS

Date	Material type	Quantity	Reporting basis	Moisture (%)	Density (lbs/cu ft)	N (mg/kg)	P (mg/kg)	K (mg/kg)	Salt (mg/kg)	TFS (%)
09/27/2023	Corral solids	3,775.00 *ton*	As-is	32.9		16,400.00	3,700.00	11,700.00		35.00

No liquid nutrient exports entered.

Material type	Total N (lbs)	Total P (lbs)	Total K (lbs)	Total salt (lbs)
Dry manure	123,820.00	27,935.00	88,335.00	1,773,117.50
Process wastewater	0.00	0.00	0.00	0.00
Total exports for all materials	123,820.00	27,935.00	88,335.00	1,773,117.50

APPLICATION AREA

A. LIST OF LAND APPLICATION AREAS

Field name	Controlled acres	Cropable acres	Total harvests	Type of waste applied	Parcel number
Field 1	28	28	2	process wastewater	0143-0190-0007-0000
Field 2	80	80	2	none	0143-0210-0031-0000 0143-0210-0051-0000 0143-0210-0052-0000 0143-0210-0053-0000 0143-0210-0054-0000 0143-0210-0055-0000 0143-0210-0056-0000 0143-0210-0075-0000 0143-0210-0076-0000 0143-0210-0077-0000
Totals for areas that were used for application	28	28	2		
Totals for areas that were not used for application	80	80	2		
Land application area totals	108	108	4		

B. CROPS AND HARVESTS

Field 1

Field name: Field 1

11/07/2022: Wheat, silage, soft dough

Crop: Wheat, silage, soft dough Acres planted: 28 Plant date: 11/07/2022

Harvest date	Yield	Reporting basis	Density (lbs/cu ft)	Moisture (%)	N (mg/kg)	P (mg/kg)	K (mg/kg)	Salt (mg/kg)	TFS (%)
04/20/2023	504.00 *ton*	As-is		75.6	5,000.00	1,400.00	10,000.00		11.20

	Yield (tons/acre)	Total N (lbs/acre)	Total P (lbs/acre)	Total K (lbs/acre)	Salt (lbs/acre)
Anticipated harvest content	18.00	198.00	72.00	180.00	0.00
Total actual harvest content	18.00	180.00	50.40	360.00	983.81

Field 1

05/11/2023: Corn, silage

Crop: Corn, silage Acres planted: 28 Plant date: 05/11/2023

Harvest date	Yield	Reporting basis	Density (lbs/cu ft)	Moisture (%)	N (mg/kg)	P (mg/kg)	K (mg/kg)	Salt (mg/kg)	TFS (%)
08/22/2023	560.00 *ton*	As-is		75.3	5,400.00	1,100.00	7,200.00		8.20

	Yield (tons/acre)	Total N (lbs/acre)	Total P (lbs/acre)	Total K (lbs/acre)	Salt (lbs/acre)
Anticipated harvest content	30.00	240.00	105.00	240.00	0.00
Total actual harvest content	20.00	216.00	44.00	288.00	810.16

Field 2

Field name: Field 2

11/07/2022: Wheat, silage, soft dough

Crop: Wheat, silage, soft dough Acres planted: 80 Plant date: 11/07/2022

Harvest date	Yield	Reporting basis	Density (lbs/cu ft)	Moisture (%)	N (mg/kg)	P (mg/kg)	K (mg/kg)	Salt (mg/kg)	TFS (%)
04/20/2023	1,040.00 *ton*	As-is		74.9	3,200.00	900.00	6,100.00		8.30

	Yield (tons/acre)	Total N (lbs/acre)	Total P (lbs/acre)	Total K (lbs/acre)	Salt (lbs/acre)
Anticipated harvest content	18.00	198.00	72.00	180.00	0.00
Total actual harvest content	13.00	83.20	23.40	158.60	541.66

05/15/2023: Sweet Potato

Crop: Sweet Potato Acres planted: 80 Plant date: 05/15/2023

Harvest date	Yield	Reporting basis	Density (lbs/cu ft)	Moisture (%)	N (mg/kg)	P (mg/kg)	K (mg/kg)	Salt (mg/kg)	TFS (%)
08/31/2023	960.00 *ton*	As-is		80.0	36,500.00	1,000.00	41,500.00		10.00

	Yield (tons/acre)	Total N (lbs/acre)	Total P (lbs/acre)	Total K (lbs/acre)	Salt (lbs/acre)
Anticipated harvest content	10.00	1,200.00	200.00	1,000.00	0.00
Total actual harvest content	12.00	876.00	24.00	996.00	480.00

NUTRIENT BUDGET

A. LAND APPLICATIONS

Field 1 - 11/07/2022: Wheat, silage, soft dough

Field name: Field 1

Crop: Wheat, silage, soft dough

Plant date: 11/07/2022

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
09/05/2022	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	22.20	7.11	175.71	510.71	204,000.00 *gal*
District Water	Surface water	0.00	0.00	0.00	39.11	7,755,245.00 *gal*
Application event totals		22.20	7.11	175.71	549.82	

12/06/2022	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	41.62	13.34	329.46	957.59	382,500.00 *gal*
Application event totals		41.62	13.34	329.46	957.59	

12/27/2022	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	36.07	11.56	285.53	829.91	331,500.00 *gal*
Application event totals		36.07	11.56	285.53	829.91	

01/05/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	17.49	5.71	182.40	616.50	306,000.00 *gal*
Application event totals		17.49	5.71	182.40	616.50	

01/17/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	20.41	6.66	212.80	719.26	357,000.00 *gal*
Application event totals		20.41	6.66	212.80	719.26	

Field 1 - 11/07/2022: Wheat, silage, soft dough

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
02/08/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	17.49	5.71	182.40	616.50	306,000.00 *gal*
Application event totals		17.49	5.71	182.40	616.50	

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
03/02/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	18.95	6.18	197.60	667.88	331,500.00 *gal*
Application event totals		18.95	6.18	197.60	667.88	

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
03/30/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	23.32	7.61	243.20	822.01	408,000.00 *gal*
Application event totals		23.32	7.61	243.20	822.01	

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
04/12/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	30.18	8.28	139.08	606.47	382,500.00 *gal*
Application event totals		30.18	8.28	139.08	606.47	

Field 1 - 05/11/2023: Corn, silage

Field name: Field 1

Crop: Corn, silage

Plant date: 05/11/2023

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
04/29/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	28.16	7.72	129.81	566.04	357,000.00 *gal*
District Water	Surface water	0.00	0.00	0.00	44.95	4,308,728.00 *gal*
Application event totals		28.16	7.72	129.81	610.99	

Field 1 - 05/11/2023: Corn, silage

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
05/03/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	24.14	6.62	111.26	485.18	306,000.00 *gal*
Application event totals		24.14	6.62	111.26	485.18	

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
05/23/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	28.16	7.72	129.81	566.04	357,000.00 *gal*
Application event totals		28.16	7.72	129.81	566.04	

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
06/06/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	38.22	10.48	176.17	768.20	484,500.00 *gal*
District Water	Surface water	0.00	0.00	0.00	60.40	5,790,072.00 *gal*
Application event totals		38.22	10.48	176.17	828.60	

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
06/29/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	36.21	9.93	166.89	727.77	459,000.00 *gal*
District Water	Surface water	0.00	0.00	0.00	56.18	5,385,978.00 *gal*
Application event totals		36.21	9.93	166.89	783.95	

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
07/16/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	38.45	13.41	237.27	753.30	357,000.00 *gal*
Application event totals		38.45	13.41	237.27	753.30	

Field 1 - 05/11/2023: Corn, silage

Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
08/01/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
Lagoon	Process wastewater	43.94	15.32	271.16	860.92	408,000.00 *gal*
District Water	Surface water	0.00	0.00	0.00	50.56	4,847,399.00 *gal*
Application event totals		43.94	15.32	271.16	911.48	

Field 2 - 11/07/2022: Wheat, silage, soft dough

Field name: Field 2

Crop: Wheat, silage, soft dough

Plant date: 11/07/2022

No nutrient budget entered for this crop.

Field 2 - 05/15/2023: Sweet Potato

Field name: Field 2

Crop: Sweet Potato

Plant date: 05/15/2023

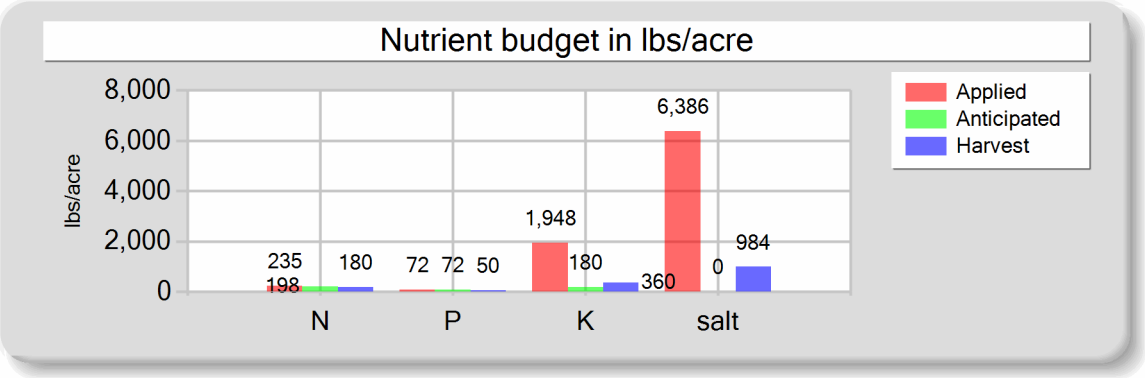
Application date	Application method	Precipitation 24 hours prior	Precipitation during application	Precipitation 24 hours following
07/01/2023	Surface (irrigation)	No precipitation	No precipitation	No precipitation

Source description	Material type	N (lbs/acre)	P (lbs/acre)	K (lbs/acre)	Salt (lbs/acre)	Amount
District Water	Surface water	0.00	0.00	0.00	241.84	66,240,000.00 *gal*
Application event totals		0.00	0.00	0.00	241.84	

B. NUTRIENT BUDGET

Field 1 - 11/07/2022: Wheat, silage, soft dough

Field name: Field 1 Crop: Wheat, silage, soft dough Plant date: 11/07/2022



	Total N (lbs/acre)	Total P (lbs/acre)	Total K (lbs/acre)	Total salt (lbs/acre)
Existing soil nutrient content	0.00	0.00	0.00	0.00
Plowdown credit	0.00	0.00	0.00	0.00
Commercial fertilizer / Other	0.00	0.00	0.00	0.00
Dry manure	0.00	0.00	0.00	0.00
Process wastewater	227.73	72.16	1,948.16	6,346.84
Fresh water	0.00	0.00	0.00	39.11
Atmospheric deposition	7.00	0.00	0.00	0.00
Total nutrients applied	234.73	72.16	1,948.16	6,385.95
Anticipated crop nutrient removal	198.00	72.00	180.00	0.00
Actual crop nutrient removal	180.00	50.40	360.00	983.81
Nutrient balance	54.73	21.76	1,588.16	5,402.14
Applied to removed ratio	1.30	1.43	5.41	6.49

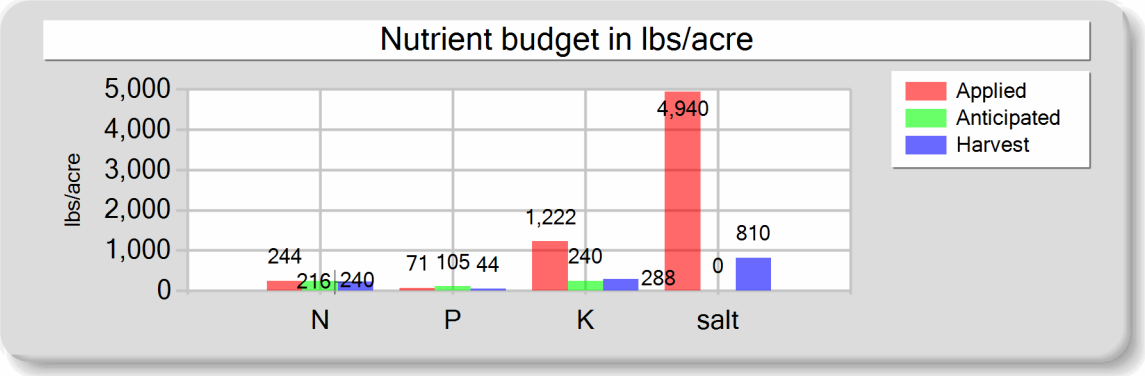
Fresh water applied	
7,755,245.00	*gallons*
285.60	*acre-inches*
10.20	*inches/acre*

Process wastewater applied	
3,009,000.00	*gallons*
110.81	*acre-inches*
3.96	*inches/acre*

Total harvests for the crop	
1	*harvests*

Field 1 - 05/11/2023: Corn, silage

Field name: Field 1 Crop: Corn, silage Plant date: 05/11/2023



	Total N (lbs/acre)	Total P (lbs/acre)	Total K (lbs/acre)	Total salt (lbs/acre)
Existing soil nutrient content	0.00	0.00	0.00	0.00
Plowdown credit	0.00	0.00	0.00	0.00
Commercial fertilizer / Other	0.00	0.00	0.00	0.00
Dry manure	0.00	0.00	0.00	0.00
Process wastewater	237.29	71.21	1,222.37	4,727.45
Fresh water	0.00	0.00	0.00	212.09
Atmospheric deposition	7.00	0.00	0.00	0.00
Total nutrients applied	244.29	71.21	1,222.37	4,939.54
Anticipated crop nutrient removal	240.00	105.00	240.00	0.00
Actual crop nutrient removal	216.00	44.00	288.00	810.16
Nutrient balance	28.29	27.21	934.37	4,129.38
Applied to removed ratio	1.13	1.62	4.24	6.10

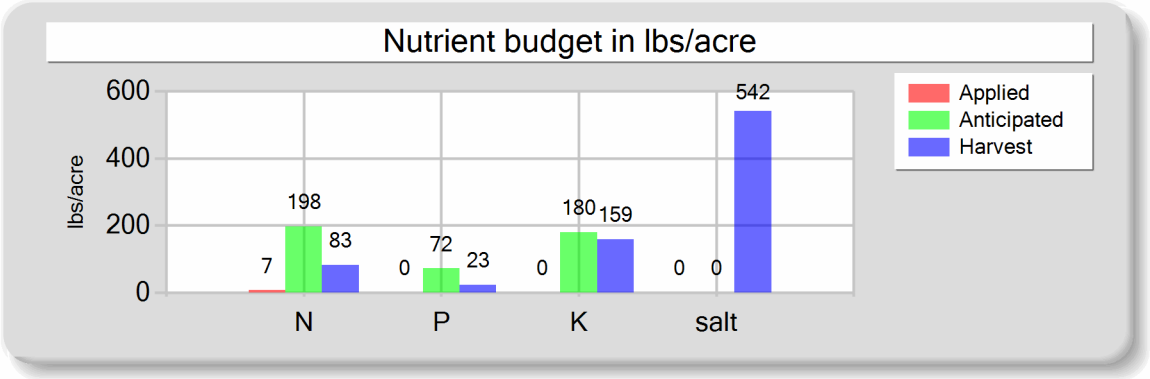
Fresh water applied	
20,332,177.00	*gallons*
748.76	*acre-inches*
26.74	*inches/acre*

Process wastewater applied	
2,728,500.00	*gallons*
100.48	*acre-inches*
3.59	*inches/acre*

Total harvests for the crop	
1	*harvests*

Field 2 - 11/07/2022: Wheat, silage, soft dough

Field name: Field 2 Crop: Wheat, silage, soft dough Plant date: 11/07/2022



	Total N (lbs/acre)	Total P (lbs/acre)	Total K (lbs/acre)	Total salt (lbs/acre)
Existing soil nutrient content	0.00	0.00	0.00	0.00
Plowdown credit	0.00	0.00	0.00	0.00
Commercial fertilizer / Other	0.00	0.00	0.00	0.00
Dry manure	0.00	0.00	0.00	0.00
Process wastewater	0.00	0.00	0.00	0.00
Fresh water	0.00	0.00	0.00	0.00
Atmospheric deposition	7.00	0.00	0.00	0.00
Total nutrients applied	7.00	0.00	0.00	0.00
Anticipated crop nutrient removal	198.00	72.00	180.00	0.00
Actual crop nutrient removal	83.20	23.40	158.60	541.66
Nutrient balance	-76.20	-23.40	-158.60	-541.66
Applied to removed ratio	0.08	0.00	0.00	0.00

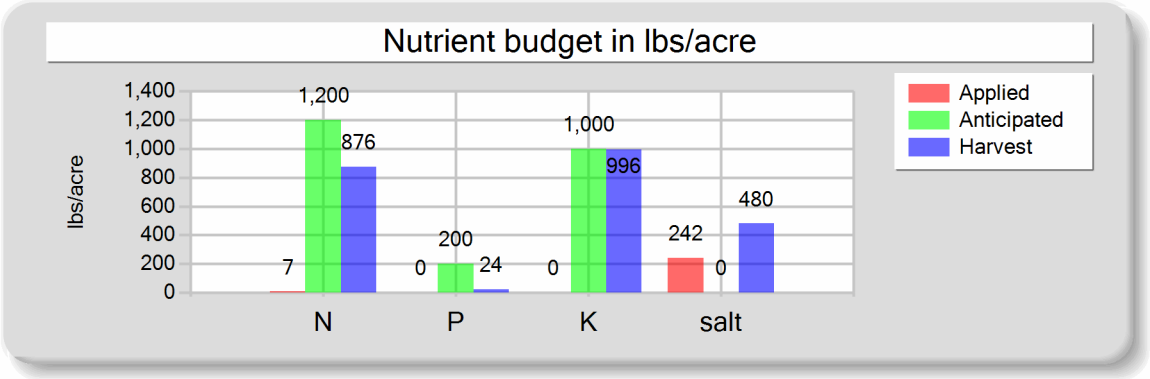
Fresh water applied
0.00 *gallons*
0.00 *acre-inches*
0.00 *inches/acre*

Process wastewater applied
0.00 *gallons*
0.00 *acre-inches*
0.00 *inches/acre*

Total harvests for the crop
1 *harvests*

Field 2 - 05/15/2023: Sweet Potato

Field name: Field 2 Crop: Sweet Potato Plant date: 05/15/2023



	Total N (lbs/acre)	Total P (lbs/acre)	Total K (lbs/acre)	Total salt (lbs/acre)
Existing soil nutrient content	0.00	0.00	0.00	0.00
Plowdown credit	0.00	0.00	0.00	0.00
Commercial fertilizer / Other	0.00	0.00	0.00	0.00
Dry manure	0.00	0.00	0.00	0.00
Process wastewater	0.00	0.00	0.00	0.00
Fresh water	0.00	0.00	0.00	241.84
Atmospheric deposition	7.00	0.00	0.00	0.00
Total nutrients applied	7.00	0.00	0.00	241.84
Anticipated crop nutrient removal	1,200.00	200.00	1,000.00	0.00
Actual crop nutrient removal	876.00	24.00	996.00	480.00
Nutrient balance	-869.00	-24.00	-996.00	-238.16
Applied to removed ratio	0.01	0.00	0.00	0.50

Fresh water applied	
66,240,000.00	*gallons*
2,439.39	*acre-inches*
30.49	*inches/acre*

Process wastewater applied	
0.00	*gallons*
0.00	*acre-inches*
0.00	*inches/acre*

Total harvests for the crop	
1	*harvests*

NUTRIENT ANALYSES

A. MANURE ANALYSES

Coral Manure - 23D1085

Sample and source description: Coral Manure - 23D1085
Sample date: 04/20/2023 Material type: Corral solids Source of analysis: Lab analysis Method of reporting: As-is
Moisture: 22.2 %

	Total N (mg/kg)	Total P (mg/kg)	Total K (mg/kg)	Calcium (mg/kg)	Magnesium (mg/kg)	Sodium (mg/kg)	Sulfur (mg/kg)	Chloride (mg/kg)	Total salt (mg/kg)	TFS (%)
Value	11,300.00	2,800.00	8,400.00							
DL	100.00	100.00	30.00							

Coral Manure - 23J1673

Sample and source description: Coral Manure - 23J1673
Sample date: 10/24/2023 Material type: Corral solids Source of analysis: Lab analysis Method of reporting: As-is
Moisture: 32.9 %

	Total N (mg/kg)	Total P (mg/kg)	Total K (mg/kg)	Calcium (mg/kg)	Magnesium (mg/kg)	Sodium (mg/kg)	Sulfur (mg/kg)	Chloride (mg/kg)	Total salt (mg/kg)	TFS (%)
Value	16,400.00	3,700.00	11,700.00							
DL	100.00	100.00	30.00							

B. PROCESS WASTEWATER ANALYSES

2022 4th Qtr - 22J1730

Sample and source description: 2022 4th Qtr - 22J1730
Sample date: 10/27/2022 Material type: Process wastewater Source of analysis: Lab analysis pH: 7.70

	Kjeldahl-N (mg/L)	NH4-N (mg/L)	NH3-N (mg/L)	Nitrate-N (mg/L)	Total P (mg/L)	Total K (mg/L)	Calcium (mg/L)	Magnes. (mg/L)	Sodium (mg/L)	Bicarb. (mg/L)	Carb. (mg/L)	Sulfate (mg/L)	Chloride (mg/L)	EC (µmhos/cm)	TDS (mg/L)
Value	363.50	190.25	0.00	1.60	117.00	2,890.00								14,900.00	8,400
DL	0.70	0.20	0.01	0.01	0.02	0.20								1.00	10

2023 1st Qtr - 23C0581

Sample and source description: 2023 1st Qtr - 23C0581

Sample date: 03/15/2023 Material type: Process wastewater Source of analysis: Lab analysis pH: 8.00

	Kjeldahl-N (mg/L)	NH4-N (mg/L)	NH3-N (mg/L)	Nitrate-N (mg/L)	Total P (mg/L)	Total K (mg/L)	Calcium (mg/L)	Magnes. (mg/L)	Sodium (mg/L)	Bicarb. (mg/L)	Carb. (mg/L)	Sulfate (mg/L)	Chloride (mg/L)	EC (µmhos/cm)	TDS (mg/L)
Value	191.00	135.50	0.00	0.80	62.60	2,000.00								11,000.00	6,760
DL	0.70	0.20	0.01	0.01	0.02	0.20								1.00	10

2023 2nd Qtr - 23D1079

Sample and source description: 2023 2nd Qtr - 23D1079

Sample date: 04/20/2023 Material type: Process wastewater Source of analysis: Lab analysis pH: 7.70

	Kjeldahl-N (mg/L)	NH4-N (mg/L)	NH3-N (mg/L)	Nitrate-N (mg/L)	Total P (mg/L)	Total K (mg/L)	Calcium (mg/L)	Magnes. (mg/L)	Sodium (mg/L)	Bicarb. (mg/L)	Carb. (mg/L)	Sulfate (mg/L)	Chloride (mg/L)	EC (µmhos/cm)	TDS (mg/L)
Value	264.50	128.00	0.00	0.20	72.60	1,220.00								9,030.00	5,320
DL	0.70	0.20	0.01	0.01	0.02	0.20								1.00	10

2023 3rd Qtr - 23H0627

Sample and source description: 2023 3rd Qtr - 23H0627

Sample date: 08/02/2023 Material type: Process wastewater Source of analysis: Lab analysis pH: 7.90

	Kjeldahl-N (mg/L)	NH4-N (mg/L)	NH3-N (mg/L)	Nitrate-N (mg/L)	Total P (mg/L)	Total K (mg/L)	Calcium (mg/L)	Magnes. (mg/L)	Sodium (mg/L)	Bicarb. (mg/L)	Carb. (mg/L)	Sulfate (mg/L)	Chloride (mg/L)	EC (µmhos/cm)	TDS (mg/L)
Value	360.50	207.00	0.00	0.85	126.00	2,230.00								13,500.00	7,080
DL	0.70	0.20	0.01	0.01	0.02	0.20								1.00	10

2023 4th Qtr - 23J1668

Sample and source description: 2023 4th Qtr - 23J1668

Sample date: 10/24/2023 Material type: Process wastewater Source of analysis: Lab analysis pH: 7.80

	Kjeldahl-N (mg/L)	NH4-N (mg/L)	NH3-N (mg/L)	Nitrate-N (mg/L)	Total P (mg/L)	Total K (mg/L)	Calcium (mg/L)	Magnes. (mg/L)	Sodium (mg/L)	Bicarb. (mg/L)	Carb. (mg/L)	Sulfate (mg/L)	Chloride (mg/L)	EC (µmhos/cm)	TDS (mg/L)
Value	342.00	211.50	0.00	0.55	116.00	2,340.00								13,500.00	10,000
DL	0.70	0.20	0.01	0.01	0.02	0.20								1.00	10

C. FRESH WATER ANALYSES

Barn Domestic Well

23C0579

Sample description: 23C0579

Sample date: 03/15/2023 Source of analysis: Lab analysis

	Total N (mg/L)	NH4-N (mg/L)	Nitrate-N (mg/L)	Calcium (mg/L)	Magnesium (mg/L)	Sodium (mg/L)	Bicarbonate (mg/L)	Carbonate (mg/L)	Sulfate (mg/L)	Chloride (mg/L)	EC (µmhos/cm)	TDS (mg/L)
Value			9.50	22.00	4.50	42.00	91.60	0.00	26.70	6.80	352.00	250
DL			0.01	0.05	0.40	0.10	3.00	0.90	0.01	0.03	1.00	10

District Water

23H0626

Sample description: 23H0626

Sample date: 08/02/2023 Source of analysis: Lab analysis

	Total N (mg/L)	NH4-N (mg/L)	Nitrate-N (mg/L)	Calcium (mg/L)	Magnesium (mg/L)	Sodium (mg/L)	Bicarbonate (mg/L)	Carbonate (mg/L)	Sulfate (mg/L)	Chloride (mg/L)	EC (µmhos/cm)	TDS (mg/L)
Value	0.00		0.00								28.20	35
DL	0.01		0.01								1.00	10

House Domestic Well

23C0579

Sample description: 23C0579

Sample date: 03/15/2023 Source of analysis: Lab analysis

	Total N (mg/L)	NH4-N (mg/L)	Nitrate-N (mg/L)	Calcium (mg/L)	Magnesium (mg/L)	Sodium (mg/L)	Bicarbonate (mg/L)	Carbonate (mg/L)	Sulfate (mg/L)	Chloride (mg/L)	EC (µmhos/cm)	TDS (mg/L)
Value			14.40	31.80	6.90	43.00	108.00	0.00	30.40	10.00	447.00	293
DL			0.01	0.05	0.40	0.10	3.00	0.90	0.01	0.03	1.00	10

D. SOIL ANALYSES

No soil analyses entered.

E. PLANT TISSUE ANALYSES

Field 1 - 11/07/2022: Wheat, silage, soft dough

23D1084

Sample and source description: 23D1084

Sample date: 04/19/2023 Source of analysis: Lab analysis Method of reporting: As-is

Moisture: 75.6 %

	Total N (mg/kg)	Total P (mg/kg)	Total K (mg/kg)	Total salt (mg/kg)	TFS (%)
Value	5,000.00	1,400.00	10,000.00		11.20
DL	100.00	100.00	30.00		0.01

Field 1 - 05/11/2023: Corn, silage

23H2127

Sample and source description: 23H2127

Sample date: 08/22/2023 Source of analysis: Lab analysis Method of reporting: As-is

Moisture: 75.3 %

	Total N (mg/kg)	Total P (mg/kg)	Total K (mg/kg)	Total salt (mg/kg)	TFS (%)
Value	5,400.00	1,100.00	7,200.00		8.20
DL	100.00	100.00	30.00		0.01

Field 2 - 11/07/2022: Wheat, silage, soft dough

Field 2 - 11/07/2022: Wheat, silage, soft dough

23D1084

Sample and source description: 23D1084

Sample date: 04/19/2023 Source of analysis: Lab analysis Method of reporting: As-is

Moisture: 74.9 %

	Total N (mg/kg)	Total P (mg/kg)	Total K (mg/kg)	Total salt (mg/kg)	TFS (%)
Value	3,200.00	900.00	6,100.00		8.30
DL	100.00	100.00	30.00		0.01

Field 2 - 05/15/2023: Sweet Potato

Sweet Potatoes - Estimated

Sample and source description: Sweet Potatoes - Estimated

Sample date: 08/31/2023 Source of analysis: Other/estimated Method of reporting: As-is

Moisture: 80.0 %

	Total N (mg/kg)	Total P (mg/kg)	Total K (mg/kg)	Total salt (mg/kg)	TFS (%)
Value	36,500.00	1,000.00	41,500.00		10.00
DL	100.00	100.00	30.00		1.00

F. SUBSURFACE (TILE) DRAINAGE ANALYSES

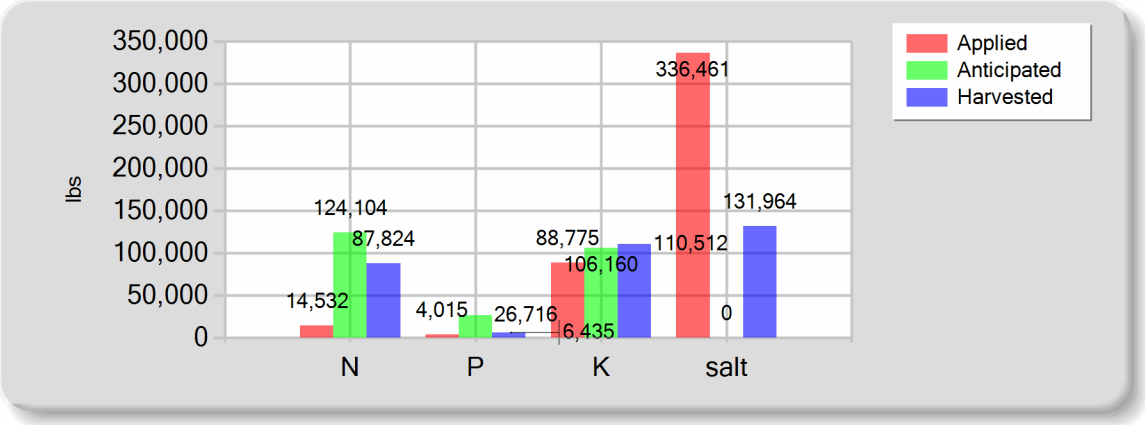
No subsurface (tile) drainage analyses entered.

NUTRIENT APPLICATIONS, POTENTIAL REMOVAL, AND BALANCE

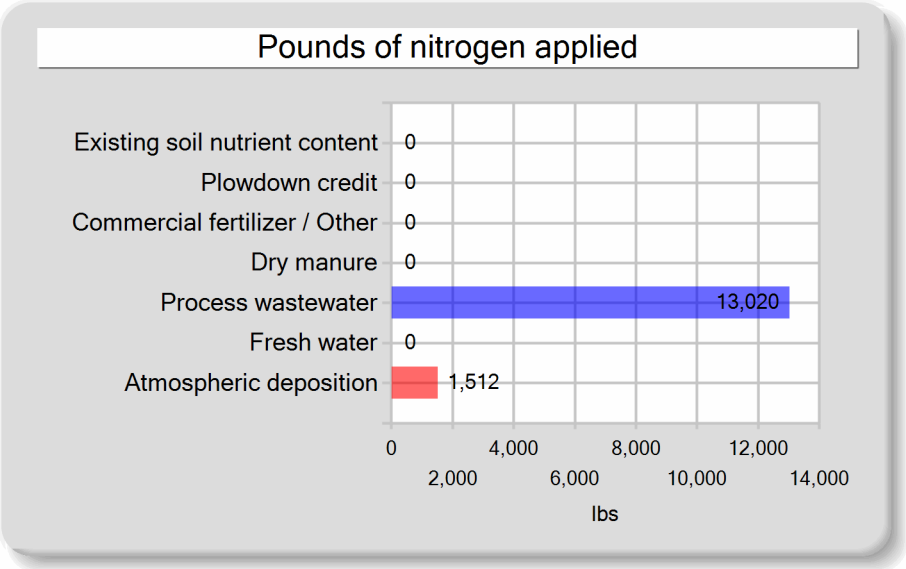
A. SUMMARY OF NUTRIENT APPLICATIONS, POTENTIAL REMOVAL, AND BALANCE

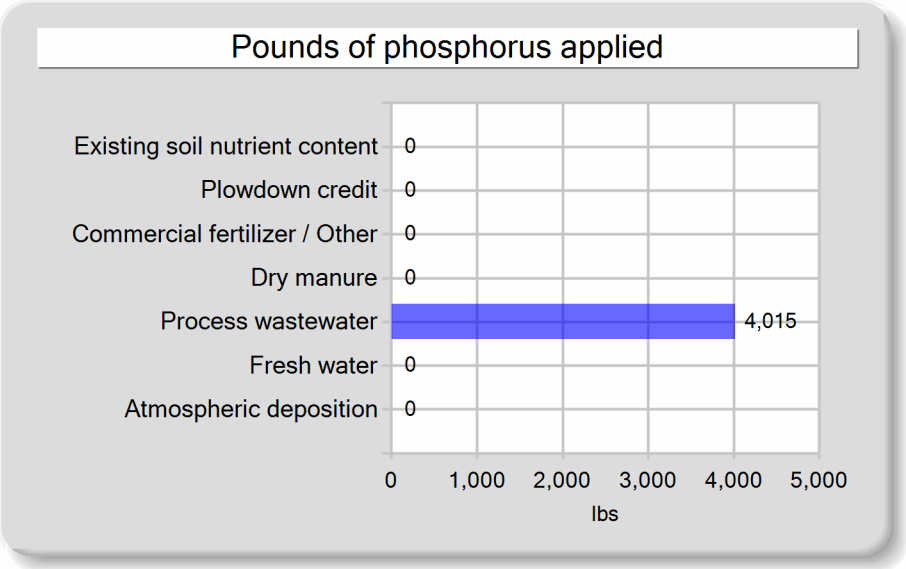
	Total N (lbs)	Total P (lbs)	Total K (lbs)	Total salt (lbs)
Existing soil nutrient content	0.00	0.00	0.00	0.00
Plowdown credit	0.00	0.00	0.00	0.00
Commercial fertilizer / Other	0.00	0.00	0.00	0.00
Dry manure	0.00	0.00	0.00	0.00
Process wastewater	13,020.46	4,014.51	88,774.86	310,080.01
Fresh water	0.00	0.00	0.00	26,380.59
Atmospheric deposition	1,512.00	0.00	0.00	0.00
Total nutrients applied	14,532.46	4,014.51	88,774.86	336,460.59
Anticipated crop nutrient removal	124,104.00	26,716.00	106,160.00	0.00
Actual crop nutrient removal	87,824.00	6,435.20	110,512.00	131,963.74
Nutrient balance	-73,291.54	-2,420.69	-21,737.14	204,496.85
Applied to removed ratio	0.17	0.62	0.80	2.55

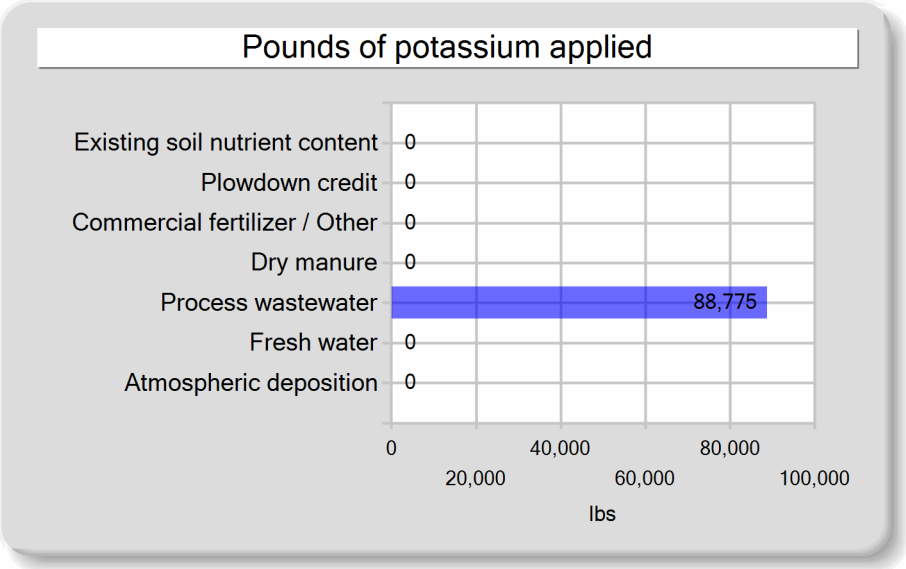
B. POUNDS OF NUTRIENT APPLIED VS. CROP REMOVAL

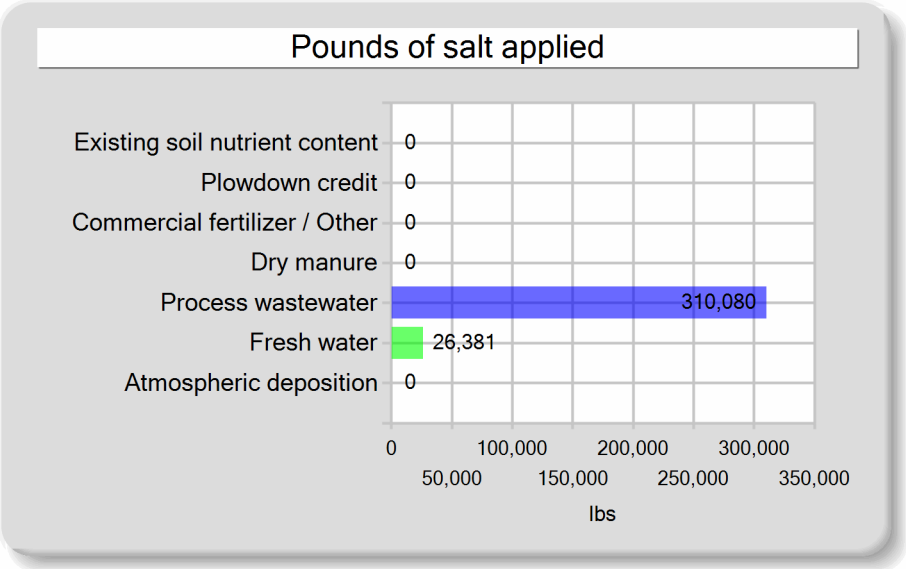


C. POUNDS OF NUTRIENT APPLIED BY MATERIAL TYPE









EXCEPTION REPORTING

A. MANURE, PROCESS WASTEWATER, AND OTHER DAIRY WASTE DISCHARGES

The following is a summary of all manure and process wastewater discharges from the production area to surface water or to land areas (land application areas or otherwise) when not in accordance with the facility's Nutrient Management Plan.

No manure or process wastewater discharges occurred during the reporting period.

B. STORM WATER DISCHARGES

The following is a summary of all storm water discharges from the production area to surface water during the reporting period when not in accordance with the facility 's Nutrient Management Plan.

No stormwater discharges occurred during the reporting period.

C. LAND APPLICATION AREA TO SURFACE WATER DISCHARGES

The following is a summary of all discharges from the land application area to surface water that have occurred during the reporting period when not in accordance with the facility's Nutrient Management Plan.

No land application area to surface water discharges occurred during the reporting period.

NUTRIENT MANAGEMENT PLAN AND EXPORT AGREEMENT STATEMENTS

A. NUTRIENT MANAGEMENT PLAN STATEMENTS

Was the facility's NMP updated in the reporting period?	Yes
Was the facility's NMP developed by a certified nutrient management planner (specialist) as specified in Attachment C of the General Order?	Yes
Was the facility's NMP approved by a certified nutrient management planner (specialist) as specified in Attachment C of the General Order?	Yes

B. EXPORT AGREEMENT STATEMENT

Are there any written agreements with third parties to receive manure or process wastewater that are new or were revised within the reporting period?	No

ADDITIONAL NOTES

A. NOTES

All data entered in this 2023 Annual Report is correct as submitted by the owner/operator and has been confirmed by the owner/operator to be accurate.

Per their lease agreement, the current operators, Jose and Yolanda Jimenez, are allowed to grow a winter forage crop on field 2. Field 2 is then utilized during the summer by the owner to grow a sweet potato crop.

The Ag Supply Well continues to be out of service for the time being, thus no applications from the Ag Supply Well were made to the Land Application Area, and no sample was collected during the reporting year. If the Ag Supply Well ever returns to service, a sample will be taken and analyzed including analyses for general minerals.

Canal water can only be applied when available. It was applied to the winter forage as a pre-plant irrigation at the end of the summer of 2022.

Process wastewater alone was applied to the winter forage crop during the majority of the winter growing season as no fresh water from either a well source or canal source is available for application during that time.

Since field 2 is utilized to grow a sweet potato crop during the summer forage, no solid or liquid manure is applied at any time during the winter forage. Thus field 2 did not receive any type of irrigation applications during the winter growing season as no freshwater is available and no manure sources are allowed to be applied.

Applications, analyses, and yields for the sweet potato crop on field 2 are estimated based off textbook values as actual data could not be obtained.

Field 1 returned acceptable Total N ratios for both the winter and summer crops.

Field 2 returned low Total N ratios for both crops. Though the yield for the winter crop is below textbook average for triticale, it does not indicate any extreme under fertilization or crop failure. No process wastewater or solid manure is applied to this field because of the summer sweet potato crop.

ANNUAL REPORT VALIDATION INFORMATION

A. VALIDATION ERRORS

The following sections contain validation errors and should be reviewed before submitting the Annual Report :

1. Land Application Events

Annual Report - General Order No. R5-2007-0035
Reporting period 01/01/2023 to 12/31/2023.

CERTIFICATION

A. OWNER AND/OR OPERATOR CERTIFICATION

I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment.

Bhupinder Sahota	Jose C Jimenez
SIGNATURE OF OWNER OF FACILITY	SIGNATURE OF OPERATOR OF FACILITY
Sahota Bhupinder	Jose Jimenez
PRINT OR TYPE NAME	PRINT OR TYPE NAME
4 23 24	4-23-24
DATE	DATE

ATTACHMENTS

A. REQUIRED ATTACHMENTS

The following lists the required documents that should be attached to the Annual Report when submitted .

Annual Dairy Facility Assessment
Provide an Annual Dairy Facility Assessment (an update to the Preliminary Dairy Facility Assessment in Attachment A) for each reporting period. On the PDFA Final page, click on the ADFA Report button to generate an ADFA report after updating information as needed .

Manure/Process Wastewater Tracking Manifests
Provide copies of all manure/process wastewater tracking manifests for the reporting period, signed by both the owner/operator and the hauler.

Corrective Actions Documents
Provide records documenting any corrective actions taken to correct deficiencies noted as a result of the inspections required in the Monitoring Requirements of the General Order. Deficiencies not corrected in 30 days must be accompanied by an explanation of the factors preventing immediate correction.

Groundwater Monitoring
Dischargers that monitor supply wells or subsurface (tile) drainage systems, or that have monitoring well systems must submit monitoring results as directed in the General Order, Groundwater Reporting Section starting on page MRP-13.

Storm Water Monitoring
Dischargers that are required to monitor storm water more frequently than required in the General Order must submit monitoring results as directed in the General Order, Storm Water Reporting Section on page MRP-14.

Manure Tracking Manifest

1910 W. McKinley, Suite 110 Fresno CA 93728-1298 (559) 233-6129

Manure / Process Wastewater Tracking Manifest
For
Existing Milk Cow Dairies

General Order No. R5-2007-0035, Attachment D

INSTRUCTIONS

1) Complete one manifest for each hauling event, for each destination. A hauling event may last for several days, as long as the manure is being hauled to the same destination.
2) If there are multiple destinations, complete a separate form for each destination.
3) The operator must obtain the signature of the hauler upon completion of each manure/process wastewater hauling event.
4) The operator shall submit copies of manure/process wastewater tracking manifest(s) with the Annual Monitoring Report for Existing Milk Cow Dairies.

OPERATOR INFORMATION

Name of Operator: Josa y Yolanda Jimenez

Name of Dairy Facility: J&Y Jimenez Dairy Inc.

Facility Address:

Number and Street | City | County | Zip Code

Contact Person Name and Phone Number: Josa Jimenez (209) 450-0412
Name | Phone Number
(209) 596-8378

HAULER INFORMATION

Name of Hauling Company/Person: STone Spreading

Address of Hauling Company/Person:
5175 W. Shaw Ave | Winton | CA | 95388
Number and Street | City | State | Zip Code

Contact Person: Paul Stone
Name | Phone Number

DESTINATION INFORMATION

Composting Facility / Broker / Farmer / Other (identify):

Contact information of Composting Facility, Broker, Farmer, or Other (as identified above):

Name | Phone Number

Address | City | State | Zip Code

Destination Address or Assessor's Parcel Number:

Address | City | Zip Code

Street and nearest cross street (if no address) | County

Assessor's Parcel Number | Assessor's Parcel Number County

Last date hauled: 8-10-23

Manure / Process Wastewater Tracking Manifest
For
Existing Milk Cow Dairies

General Order No. R5-2007-0035, Attachment D

MANURE AMOUNT HAULED

Enter the amount of manure hauled in tons, manure solids content, and the method used to calculate the amount:

Manure: 3775 tons

Manure Solids Content: _____ %

Method used to determine amount of manure:

PROCESS WASTEWATER AMOUNT HAULED

Enter the amount of process wastewater hauled in gallons and the method used to determine the amount:

Process Wastewater: _____ gallons

Method used to determine volume of process wastewater:

WRITTEN AGREEMENT

Does the Operator have a written agreement (in compliance with Land Application Specification C.2 of Waste Discharge Requirements General Order No. R5-2007-0035) with any party that receives process wastewater from the Operator for its own use?

[ ] YES [ ] NO

If the answer is no, the Operator agrees to have such a written agreement with any such party for any process wastewater transferred after 31 December 2007 to such party.

_____ (Operator shall provide initials here to acknowledge this requirement)

CERTIFICATION

I declare under penalty of law that I personally examined and am familiar with the information submitted in this document, and that based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of a fine and imprisonment for knowing violations.

9-27-23

Operator Signature **Date**

Hauler Signature **Date**

Corrective Actions Documents

No corrective actions were reported during the time period.

Well Monitoring

2023 Well Water Summary

J&Y Jimenez

Well/Canal Name	Sample Name	Date	Lab	EC	EC	NO_3-N	Field NH_4-N	Total NH_4-N	TDS	CO_3 as $CaCO_3$	HCO_3 as $CaCO_3$	Cl	SO_4	Ca	Mg	Na	pH at 25°C
			analysis	EC	EC	NO_3-N	NH_4-N	NH_4-N	TDS	CO_3 as $CaCO_3$	HCO_3 as $CaCO_3$	Cl	SO_4	Ca	Mg	Na	pH at 25°C
			units	µmhos/cm	mmhos/cm	mg/L	mg/L	mg/L	mg/L	mg/L	mg/L	mg/L	mg/L	mg/L	mg/L	mg/L	
			DL	1	0.001	0.01		0.2	10	0.9	3	0.03	0.01	0.05	0.4	0.1	
	Irrigation District	8/2/23	23H0626	28.2	0.03	ND			35								
	House Well	3/15/23	23C0579	447	0.45	14.4	0.25	ND	293	ND	108	10	30.4	31.8	6.9	43	7.7
	Well (Barn)	3/15/23	23C0579	352	0.35	9.5	ND		250	ND	91.6	6.8	26.7	22	4.5	42	7.8

03/16/23 11:55 23C0579

JG

DELLAVALLE LABORATORY, INC.

1910 W. McKinley Avenue, Suite 110 • Fresno, CA 93728
www.dellavallelab.com 559 233-6129 • 800 228-9896 • Fax 559 268-8174

WATER WORK REQUEST

Acct No. / Cons.
Bill To: 22642 | 08

Purchase Order No. _____ Results Needed By _____

Client: **Jimenez Dairy Inc., J & Y**
Address: 11159 Peach Ave
City, State, Zip: Livingston, CA 95334
Email: yolandaj1125@gmail.com

Copy to: _____

Requested by/Cell: Yolanda Jimenez (209) 596-8378

Facility: 11159 Peach Ave, Livingston, CA 95334

Date sampled _____

Sampled by _____

☑ QA/QC Document ☑ Copy of Chain ☐ RWQCB

No. of Samples: 2 No. Bottles _____

Water Type: ☑ Ag Water ☐ Supply Water ☐ Drinking ☐ Ground Water ☐ Other _____ ☐ Wastewater ☐ Mon. Well

Analysis and Bottles Required: *(Please Indicate Analysis)*

☐ DWW1: (EC, pH, NO_3-N, **NH_4-N Field Test)**
(1) 1 L plastic, unpreserved (white)

☑ DWW2: (DWW1 Plus SO_4, CO_3, HCO_3, Cl, Ca, Mg, Na, TDS)
(1) 1 L plastic, unpreserved (white)

☐ DCW1: (EC, NO_3-N, TDS)
(1) 1 L plastic, unpreserved (white)

☐ DPW1: (EC, pH, NO_3-N, NH_4-N, TKN, TDS, TP, TK)
(1) 1 L plastic, unpreserved (white)

☐ DPW2: (DPW1 Plus Ca, Mg, Na, HCO_3, CO_3, SO_4, Cl)
(1) 1 L plastic, unpreserved (white)

☐ Other _____

DESCRIPTION OF SAMPLES

			Date Sampled	Time Sampled	Field NH4-N (mg/L)	Received Temp °C
1.	House Well	Sampled From:	3/15/23	7:00pm	0.25	28
2.	Well (Barn)	Sampled From:	3/15/23	7:00pm	0.	18
3.		Sampled From:				
4.		Sampled From:				
5.		Sampled From:				
6.		Sampled From:				
7.		Sampled From:				
8.		Sampled From:				
9.		Sampled From:				
10.		Sampled From:				

CHAIN OF CUSTODY

Carrier	Signature	Company	Received (Date/Time)	Relinquished (Date/Time)
First	Yolanda Jimenez	Dairy		3-16-23 10:41
Second	JLF	DLV		3-16-23 11:53
Third				
Fourth	KS	DLF	3-16 11:55	

I guarantee that as the client, or on behalf of the client named, I have the authority to contract the above requested services. Should it be found that I do not have such authority, I agree to be personally liable for all costs and, if there should be action against me for this breach, reasonable attorneys' fees. It is understood that payment is expected to be cash with samples unless terms have been previously arranged. Terms are net 30 days; overdue accounts will be charged a dated damage fee of 2% per month (annually 24 %) or $5.00 per month whichever is greater.
If payment is not made when due and a legitimate dispute exists concerning the product or services of Dellavalle Laboratory, Inc., it will be submitted to mediation under the Rules and Procedures of Creative Alternative to Litigation, Inc. (cal). If the dispute is not resolved in mediation, then the dispute will be submitted to binding arbitration through cal under its Rules and Procedures. The prties will equally bear the costs of mediation/arbitration. If, however, the mediator declares that no legitimate dispute exists, then debtor will pay all mediation and arbitration costs, and in the event of arbitration, reasonable attorneys' fees of Dellavalle Laboratory.

Invoicing Information:
Contract 2023
Sampling Hrs ____ Miles ____ Consulting ____
Amt Paid ____ Rec By ____ Check No. ____ Date ____

Shipping
$ _____ In
$ _____ Out

Signature _____

Sample received in cooler with ice?
[ ] Yes [ ] No

ctl:update 2020

08/03/23 16:25 23H0626

WATER WORK REQUEST

Bill To: Acct No. 22642 Cons. 08

Purchase Order No. _____ Results Needed By _____

Client: Jimenez Dairy Inc., J & Y
Address: 11159 Peach Ave
City, State, Zip: Livingston, CA 95334
Email: Hardcopies only

Copy to: _____

Requested by/Cell: Yolanda Jimenez (209) 596-8378

Facility: 11159 Peach Ave, Livingston, CA 95334

Date sampled _____

Sampled by _____

☑ QA/QC Document ☑ Copy of Chain ☐ RWQCB

DELLAVALLE LABORATORY, INC.

1910 W. McKinley Avenue, Suite 110 • Fresno, CA 93728
www.dellavallelab.com 559 233-6129 • 800 228-9896 • Fax 559 268-8174

No. of Samples 1 No. Bottles 1

Water Type: ☐ Drinking ☐ Wastewater ☑ Ag Water ☐ Ground Water ☐ Mon. Well ☐ Supply Water ☐ Other _____

Analysis and Bottles Required: *(Please Indicate Analysis)*

☐ DWW1: (EC, pH, NO_3-N, **NH_4-N Field Test**)
(1) l L plastic, unpreserved (white)

☐ DWW2: (DWW1 Plus SO_4, CO_3, HCO_3, Cl, Ca, Mg, Na, TDS)
(1) l L plastic, unpreserved (white)

☑ DCW1: (EC, NO_3-N, TDS)
(1) l L plastic, unpreserved (white)

☐ DPW1: (EC, pH, NO_3-N, NH_4-N, TKN, TDS, TP, TK)
(1) l L plastic, unpreserved (white)

☐ DPW2: (DPW1 Plus Ca, Mg, Na, HCO_3, CO_3, SO_4, Cl)
(1) l L plastic, unpreserved (white)

☐ Other _____

DESCRIPTION OF SAMPLES

		Date Sampled	Time Sampled	Field NH4-N (mg/L)	Received Temp °C
1. Irrigation District	Sampled From:	8-2-23	5:00PM		5.9
2.	Sampled From:				
3.	Sampled From:				
4.	Sampled From:				
5.	Sampled From:				
6.	Sampled From:				
7.	Sampled From:				
8.	Sampled From:				
9.	Sampled From:				
10.	Sampled From:				

IR Thermometer SN: 200560723
Correction Factor: 0°C
Calibration Due: 9/26/2023
Location: Laboratory

CHAIN OF CUSTODY

Carrier	Signature	Company	Received (Date/Time)	Relinquished (Date/Time)
First	Yolanda Jimenez		8-3-23	4:26
Second				
Third				
Fourth	Jes	DLI	8/3/23 16:25	

I guarantee that as the client, or on behalf of the client named, I have the authority to contract the above requested services. Should it be found that I do not have such authority, I agree to be personally liable for all costs and, if there should be action against me for this breach, reasonable attorneys' fees. It is understood that payment is expected to be cash with samples unless terms have been previously arranged. Terms are net 30 days; overdue accounts will be charged a dated damage fee of 2% per month (annually 24 %) or $5.00 per month whichever is greater.

If payment is not made when due and a legitimate dispute exists concerning the product or services of Dellavalle Laboratory, Inc., it will be submitted to mediation under the Rules and Procedures of Creative Alternative to Litigation, Inc. (cal). If the dispute is not resolved in mediation, then the dispute will be submitted to binding arbitration through cal under its Rules and Procedures. The prties will equally bear the costs of mediation/arbitration. If, however, the mediator declares that no legitimate dispute exists, then debtor will pay all mediation and arbitration costs, and in the event of arbitration, reasonable attorneys' fees of Dellavalle Laboratory.

Invoicing Information:
Contract 2023
Sampling Hrs ___ Miles ___ Consulting ___
Amt Paid ___ Rec By ___ Check No. ___

Shipping
$ _____ In
$ _____ Out
Date

Signature _____

Sample received in cooler with ice?
[ ] Yes [ ] No

ctt:update 2020